

Court No. - 3

Case :- WRIT - C No. - 34829 of 2023

Petitioner :- Imteyaz Ahamad

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bipin Kumar Rao, Deo Prakash Singh

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

On the request of Sri Rishu Mishra, learned counsel for Electricity Department, put up this case as fresh on 23.11.2023.

Order Date :- 6.11.2023

P.S.Parihar

Court No. - 3

Case :- WRIT - C No. - 34829 of 2023

Petitioner :- Imteyaz Ahamad

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bipin Kumar Rao, Deo Prakash Singh

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar B. Saraf, J.

On the request of Ms. Rishu Mishra, learned counsel for the respondents, put up this case on **05.12.2023 as fresh.**

Orally it has been informed by her that the recovery against the petitioner has been stayed and that the recovery would not be done till a final assessment order is passed.

Order Date :- 23.11.2023

M.S. Ansari

(Shekhar B. Saraf, J.) (Siddhartha Varma, J.)

Court No. - 3

Case :- WRIT - C No. - 34829 of 2023

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Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bipin Kumar Rao, Deo Prakash Singh

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar B. Saraf, J.

Instructions filed today be kept on record.

It has been informed by learned counsel for Electricity Department that the final assessment order has been passed.

A copy of the communication dated 11.12.2023 be also handed over to the learned counsel for petitioner.

Put up this case as fresh on 04.01.2024.

Order Date :- 12.12.2023

Sharad/-

(Shekhar B. Saraf, J.) (Siddhartha Varma, J.)

Court No. - 21

Case :- WRIT - C No. - 34829 of 2023

Petitioner :- Imteyaz Ahamad

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bipin Kumar Rao, Deo Prakash Singh

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

1. The petitioner has challenged the recovery citation dated 02.08.2023 issued by the respondents for recovery of electricity dues in the case of theft of electricity.

2. Learned counsel for the respondent-Electricity Department has placed on record the instructions received from the concerned Executive Engineer, according to which, impugned recovery certificate has been withdrawn. The petitioner has also been given option to file objections and thereafter, fresh assessment order would be passed.

3. Having regard to the aforesaid stand of the Electricity Department, we **dispose of** the instant petition by providing that the respondents will finalize the assessment proceedings afresh after following the procedure prescribed under the Uttar Pradesh Electricity Supply Code, 2005. Any objection filed by the petitioner shall be duly considered and he shall be given opportunity of hearing as per the procedure.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)

Order Date :- 4.1.2024

Mukesh Pal